CHAPTER li.

An Act to authorise the Hastings Pier Company to raise additional capital and for other purposes. [1st July 1937.] A.D. 1937.

WHEREAS the Hastings Pier Company (hereinafter called " the Company ") were incorporated by the Hastings Pier Act 1867 (hereinafter called " the Act of 1867 ") and by the Act of 1867 were authorised to construct a pier extending seawards from a point in the esplanade in the town of Hastings in the county of Sussex : 30 & 31 Vict. c. clxxxvii.

And whereas the capital of the Company authorised by the Act of 1867 is twenty-five thousand pounds in two thousand five hundred shares of ten pounds each and the Company were by the Act of 1867 authorised to borrow on mortgage a sum not exceeding six thousand pounds :

And whereas by the Hastings Pier Order 1890 (confirmed by the Pier and Harbour Orders Confirmation (No. 1) Act 1890 (hereinafter called " the Order of 1890 ")) the Company were authorised to raise additional capital not exceeding in the whole nineteen thousand pounds by the creation and issue of new ordinary shares or stock or new preference shares or stock and were also authorised to borrow on mortgage or by the creation and issue of debenture stock a sum not exceeding six thousand six hundred pounds : 53 & 54 Vict. c. xxxvii.

And whereas the Company have raised the sum of forty thousand pounds by the issue of four thousand

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shares of ten pounds each but have not borrowed any money on mortgage or by the creation and issue of debenture stock:

And whereas it is expedient that the Company should be empowered to raise additional capital and to raise further money by borrowing or by the creation and issue of debentures or debenture stock and that the further powers in this Act contained should be conferred upon the Company:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the Hastings Pier Act 1937.

Incorporation of Acts.

2.—(1) The following enactments (so far as the same are applicable to the purposes and are not inconsistent with or varied by the provisions of this Act) are hereby incorporated with and form part of this Act (namely):—

8 & 9 Vict. c. 16.

The Companies Clauses Consolidation Act 1845 (except the provisions thereof with respect to the conversion of borrowed money into capital);

26 & 27 Vict. c. 118.

Part I (relating to cancellation and surrender of shares) Part II (relating to additional capital) and Part III (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts.

(2) In the application to the Company of the Companies Clauses Consolidation Act 1845 section 116 of that Act shall be read and have effect as if the words "preceding year" were substituted therein for the words "preceding half-year."

Power of Company to raise additional capital.

3. In addition to the capital already authorised to be raised by the Company they may from time to time raise additional capital not exceeding in the whole thirty-six thousand pounds nominal capital by the creation and issue at their option of new ordinary shares or stock or new preference shares or stock or wholly or partially by any one or more of those modes respectively but the Company shall not issue any share of less nominal value than ten pounds nor shall any share vest in the person accepting the same unless and until the full nominal amount of such share shall have been paid in respect thereof.

New shares or stock to be subject to same incidents as other shares or stock.

4. Except as by this Act otherwise provided the capital in new shares or stock created by the Company under this Act and the new shares or stock therein and the holders thereof respectively shall be subject and entitled to the same powers provisions liabilities rights privileges and incidents whatsoever in all respects as if that capital were part of the now existing capital of the Company of the same class or description and the new shares or stock were shares or stock in that capital.

New shares or stock to form part of capital of Company.

5. The capital in new shares or stock so created shall form part of the capital of the Company.

Dividends on new shares or stock.

6. Every person who becomes entitled to new shares or stock shall in respect of the same be a holder of shares or stock in the Company and shall be entitled to a dividend with the other holders of shares or stock of the same class or description proportioned to the whole amount from time to time called up and paid on such new shares or to the whole amount of such stock as the case may be.

Restriction as to votes in respect of preferential shares or stock.

7. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new shares or stock in respect of which a preferential dividend shall be assigned.

Power to borrow.

8.—(1) The Company may subject to the provisions of this Act but without the certificate of a justice at any time after the passing of this Act borrow on mortgage of the undertaking in respect of the capital raised by the Company before the passing of this Act any sum or sums not exceeding in the whole twenty thousand pounds.

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(2) The Company may subject to the provisions of this Act borrow on mortgage of the undertaking in respect of any capital issued by them after the passing of this Act any sum or sums not exceeding in the whole one half of the amount which at the time of borrowing has been so issued Provided that no sum shall be borrowed in respect of any such capital until the Company have proved to a justice before he gives his certificate under section 40 of the Companies Clauses Consolidation Act 1845 that the whole of the amounts payable in respect of such share capital at the time issued have been fully paid up.

Debenture stock.

9. The Company may create and issue debenture stock subject to the provisions of Part III of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock and of all mortgages at any time after the passing of this Act created and issued or granted by the Company under this or any subsequent Act shall subject to the provisions of any subsequent Act rank pari passu (without respect to the dates of the securities or of the Acts of Parliament or resolutions by which the stock and mortgages were authorised) and shall have priority over all principal moneys secured by such mortgages Notice of the effect of this enactment shall be endorsed on all mortgages and certificates of debenture stock.

Appointment of receiver.

10. The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than one-tenth of the amount for the time being borrowed by the Company or two thousand pounds whichever is the less.

Priority of mortgages over other debts.

11. All moneys raised by the Company on mortgage or by debenture stock under the provisions of this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by them after the passing of this Act.

Redeemable preference capital and debenture stock.

12.—(1) In this section unless the context otherwise requires—

"Stock" means and includes preference stock and debenture stock;

"Preference stock" includes preference shares;

"Issue" includes re-issue;

"Redeemable stock" means any stock issued under the powers of this section so as to be redeemable;

"Redeemed stock" means any redeemable stock which has been redeemed and is available for issue under the provisions of this section.

(2) Subject to the provisions of this section the directors may from time to time by virtue of this Act and without further or other sanction issue so as to be redeemable any stock created by the Company after the passing of this Act and any redeemed stock:

Provided that no redeemed stock shall be issued except for the purpose of effecting the redemption of redeemable stock under the provisions of this section unless the issue is authorised by a resolution of a general meeting of the Company.

(3) Redeemable stock may be redeemed either by paying off the stock or by issuing to the holder of the stock (subject to his consent) other stock in substitution therefor and for the purpose of raising money to pay off or of providing stock in substitution for any redeemable stock the Company may create new stock or the directors may issue any redeemed stock so as to be redeemable or irredeemable as they may think fit:

Provided that—

(*a*) no new stock shall be created nor shall any redeemed stock be issued so as to make the total amount of any particular class of stock exceed the amount of stock of that class which the Company are for the time being authorised to create except during any necessary interval between the creation or (in the case of redeemed stock) the issue of the stock and completion of the redemption of the redeemable stock for the purpose of redeeming which the stock of such particular class is proposed to be so created or issued; and

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(*b*) during such interval as aforesaid the amount raised by means of any preference stock so created or issued shall not be deemed to be paid-up capital for the purposes of any enactment regulating the borrowing powers of the Company.

(4) The redemption of any preference stock issued so as to be redeemable shall not affect the validity of any mortgage or debenture stock of which the grant or issue by the Company was lawful in the circumstances existing at the date of such grant or issue.

(5) Redeemable stock shall bear such rate of dividend or interest (not exceeding any maximum rate prescribed in respect of the particular class of stock) and shall be redeemable at such time and in such manner and subject otherwise to such terms and conditions as the directors may before the issue thereof determine:

Provided that the terms and conditions of redemption upon which any redeemable stock is issued shall be stated in any offer by the Company of such stock for sale and in the certificate of such stock and no term or condition of redemption which is not so stated shall be binding upon the holder of the stock.

(6) The Company shall not redeem out of revenue any redeemable stock but any discount allowed on the issue or any premium payable on the redemption thereof may be written off out of revenue.

Company may incur temporary loans.

13.—(1) Subject to the provisions of the next succeeding section the Company may for the purposes of or in connection with the undertaking borrow or raise money on temporary loans from bankers by means of overdrafts or otherwise or by the issue of notes or bonds of a currency of not less than five years and of not more than ten years.

(2) The powers of borrowing or raising money conferred by this section shall be in addition to any powers for the time being of the Company to borrow on mortgage of the undertaking or to raise money by the issue of debenture stock.

Restriction on borrowing.

14. Notwithstanding anything in this Act contained—

(*a*) the total amount to be borrowed by the Company under the provisions of the sections of this Act of which the marginal notes are respectively "Power to borrow" and "Company may incur temporary loans" shall not at any time exceed thirty thousand pounds; and

(*b*) the total amount outstanding at any time of moneys borrowed by the Company under the provisions of the second of the above-mentioned sections shall not exceed one-third of the amount of the paid-up capital of the Company.

Application of moneys.

15. All moneys raised by the Company under this Act whether by shares debenture stock or borrowing shall be applied only to the general purposes of the Company to which capital is properly applicable.

Repeal.

16. The following enactments are hereby repealed:—

The Act of 1867—

Section 9 (Power to borrow on mortgage);

Section 10 (Arrears may be enforced by appointment of receiver);

Section 11 (Moneys borrowed on mortgage to have priority).

The Order of 1890—

Section 21 (Power to borrow);

Section 22 (Power to issue debenture stock);

Section 23 (Arrears may be enforced by appointment of a receiver);

Section 24 (Existing mortgages to have priority).

Costs of Act.

17. All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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